

Form FD13

20

No.

Supreme Court of Nova Scotia
(Family Division)

Between: [copy standard heading]

[name]

Applicant/Petitioner

and

[name]

Respondent

Notice of Motion for Interim Relief (Family Proceeding)

To: [name of respondent]

Motion

_____ [name] , the _____
in this proceeding, moves for an order for the following relief:

- ☐ interim decision-making responsibility/custody;
- ☐ interim parenting time, contact time or interaction;
- ☐ leave to apply;
- ☐ interim child support;
- ☐ interim spousal support;
- ☐ interim exclusive occupation or possession of residence or matrimonial home;
- ☐ other interim relief, specifically _____

Time and place [to be completed by court staff]

The motion is to be heard by a judge on [date] _____, 20____ at _____ [a.m./p.m.]
at the courthouse located at: _____

The party making the motion requests the motion for hearing for _____.
The party making the motion says that the motion will not require more time.

References

The party making the motion relies on the following legislation, Rules, or points of law:

- ☐ the *Divorce Act*, section(s) _____;
- ☐ the *Parenting and Support Act*, section(s) _____;
- ☐ the *Matrimonial Property Act*, section(s) _____;
- ☐ interim spousal support or spousal maintenance;
- ☐ other: _____.

Evidence and documents

The evidence in support of the motion is as follows:

- ☐ affidavit of _____;
- ☐ other affidavits, specifically: _____.

The applicant also relies on the following documents in support of the motion:

- ☐ parenting statement;
- ☐ statement of contact time and interaction;
- ☐ statement of income;
- ☐ statement of special or extraordinary expenses;
- ☐ statement of undue hardship circumstances;
- ☐ statement of expenses;
- ☐ statement of property;
- ☐ pre-hearing brief.

A copy of each document is to be delivered to you with this notice.

Possible order against you

You may file an affidavit and a brief, attend the hearing of the motion, and state your position on whether the proposed order should be made. If you do not attend, the judge may grant an order without further notice to you.

Signature

Signed on [date] , 20

Signature
Print name: